

26NWCV01169 26NWCV01169

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ALTERO, INC. v. GREENFIELD, ET AL.

CASE NO.: 26NWCV01169

HEARING: Thursday, August
20, 2026, at 9:30 AM

Plaintiff ALTERO, INC's Motion for Summary Judgment is GRANTED.

Moving Party to give notice.

Background

On April 2, 2026, Plaintiff ALTERO, INC. ("Plaintiff") filed this unlawful detainer action against Defendants ADAM LUJAN GREENFIELD; ALL UNKNOWN OCCUPANTS, TENANTS, and SUBTENANTS (collectively, "Defendants"); and DOES 1 through 20, inclusive.

Plaintiff's Motion for Summary Judgment

Plaintiff moves for summary judgment, arguing there are no triable issues of fact with respect to Plaintiff's single cause of action for unlawful detainer.

CCP § 1161a provides in pertinent part

(b) In any of the following cases,

a person who holds over and continues in possession of a manufactured home, mobilehome, floating home, or real property after a three-day written notice to quit the property has been served upon the person, or if there is a subtenant in actual occupation of the premises, also upon such subtenant, as prescribed in Section 1162, may be removed therefrom as prescribed in this chapter:

. . . (3) Where the property

has been sold in accordance with Section 2924 of the Civil Code, under a power of sale contained in a deed of trust executed by such person, or a person under whom such person claims, and the title under the sale has been duly perfected.

Pursuant to CCP § 1161a(b), a plaintiff must prove that (1) the property has been sold to the plaintiff in accordance with Civil Code § 2924, and title had been duly perfected; (2) a written notice to quit the property has been served upon the persons holding over, and (3) a person is holding over and continuing in possession.

I.

Whether Property was Sold in

Accordance with Civil Code § 2924, and Title Has Been Duly Perfected.

Normally, title disputes cannot be litigated in an unlawful detainer proceeding. (Martin-Bragg v. Moore (2013) 219 Cal.App.4th 367, 385.) However, a defendant may challenge a plaintiff's right to possession under CCP § 1161a by demonstrating noncompliance with Civil Code § 2924 or failure to duly perfect title. Any other sort of challenge to the plaintiff's title does not constitute a valid defense to an unlawful detainer claim. (MCA, Inc. v Universal Diversified Enters. Corp. (1972) 27 Cal.App.3d 170, 176-77.)

CCP § 1161a provides that a plaintiff who qualifies as a bona fide purchaser for value, and who presents a trustee's deed reciting a proper foreclosure process, earns a presumption of ownership, and that the sale was conducted regularly and fairly in compliance with Civil Code § 2924. (Melendrez v. D

& I Inv. (2005) 127 Cal.App.4th 1238, 1258.) Such a recital creates a rebuttable presumption or, rather, constitutes prima facie evidence of compliance for trustees, but it is conclusive evidence of compliance for bona fide purchasers. (Civ. Code § 2924(c).) A bona fide purchaser is one who pays value for the property without notice of any adverse interest or of any irregularity in the sale proceedings. (Nguyen v. Calhoun (2003) 105 Cal.App.4th 428, 442.) There is authority suggesting that an experienced foreclosure bidder may not qualify as a bona fide purchaser. (See Estate of Yates (1994) 25 Cal.App.4th 511, 523.)

“Thus, once a deed reciting that all legal requirements have been satisfied has been transferred to a buyer at a foreclosure sale, the sale can be successfully attacked on the grounds of procedural irregularity only if the buyer is not a bona fide purchaser.” (6 Angeles, Inc. v. Stuart-Wright Mortgage, Inc. (2001) 85 Cal.App.4th 1279, 1286 (emphasis in original).) Nevertheless, a successful challenge to the sale requires evidence of a failure to comply with the procedural requirements for the foreclosure sale that caused prejudice to the person attacking the sale. (6 Angeles, Inc., 85 Cal.App.4th at 1284 (emphasis added).)

Plaintiff offers the following evidence to prove the Subject Property was sold in accordance with Civil Code § 2924.

On January 15, 2019, a short form deed of trust was recorded between Greenfield as trustor and Frank McHugh as trustee and beneficiary (“Beneficiary”), securing a promissory note dated July 2, 2015, in the amount of \$1,000,000 (“DOT”), which deed of trust was executed by the Clerk of the Court, and was secured by the Subject Property, among other properties. (Undisputed Material Fact “UMF” No. 4.)

As of June 2024, Greenfield was in default on the aforementioned loan; as a result, Trustee recorded a Notice of Default against the Subject Property. (UMF No. 6.)

As of September 2024, Greenfield remained in default on the above-described loan, thus, Trustee recorded a Notice of Trustee's Sale against the Subject Property. (UMF No. 7.)

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A second Notice of Trustee's Sale was recorded against the Subject Property on December 31, 2025. (UMF No. 8.)

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On March 3, 2026, Trustee held a trustee's sale of the Commercial Property, including the Subject Property and Plaintiff was the winning bidder at that sale. (UMF No. 9.)

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Trustee subsequently issued a Trustee's Deed Upon Sale ("TDUS") to Plaintiff, which was recorded on March 11, 2026— which perfected Plaintiff's title to the Subject Property. (UMF No. 10.)

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The TDUS issued by Trustee to Plaintiff contains a recital of compliance with Civil Code section 2924, as well as with the provisions of the DOT. Specifically, the TDUS provides as follows:

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This conveyance is made in compliance with the terms and provisions of the Deed of Trust executed by ADAM LUJAN GREENFIELD, A SINGLE MAN as Trustor, dated 7/8/2015 of the Official Records in the office of the Recorder of Los Angeles, California under the authority and powers vested in the Trustee designated in the Deed of Trust or as the duly appointed Trustee, default having occurred under the Deed of Trust pursuant to the Notice of Default and Election to Sell under Deed of Trust recorded on 1/15/2019, as Instrument No. 20190043037 . . . of official records. Trustee having complied with all applicable statutory requirements of the State of California and performed all duties required by the Deed of Trust including sending a Notice of Default and Election to Sell within ten days after its recording and a Notice of Sale at least twenty days prior to the Sale Date by certified mail, postage pre paid to each person entitled to notice in compliance with California Civil Code 2924b. All requirements per California Statutes regarding the mailing, personal delivery and publication of copies of Notice of Default and Election to Sell under Deed of Trust and Notice of Trustee's Sale, and the

posting of copies of Notice of Trustee's Sale have been complied with. Trustee, in compliance with said Notice of Trustee's Sale, and in exercise of its powers under said Deed of Trust sold said real property at public auction on 3/3/2026. Grantee, being the highest bidder at sale became the purchaser of said property for the amount bid, being \$352,654.70, in lawful money of the United States, in pro per, receipt thereof is hereby acknowledged in full/partial satisfaction of the debt secured by said Deed of Trust. (UMF No. 15.)

Plaintiff met its initial burden to prove that the foreclosure sale was conducted in compliance with Civil Code § 2924.

II.

Whether Notice was Proper

CCP § 1162(a) states that the notice required to be served by CCP § 1161a may be served by any of the following:

(1) By delivering a copy to the tenant personally.

(2) If he or she is absent from his or her place of residence, and from his or her usual place of business, by leaving a copy with some person of suitable age and discretion at either place, and sending a copy through the mail addressed to the tenant at his or her place of residence.

(3) If such place of residence and business cannot be ascertained, or a person of suitable age or discretion there can not be found, then by affixing a copy in a conspicuous place on the property, and also delivering a copy to a person there residing, if such person can be found; and also sending a copy through the mail addressed to the tenant at the place where the property is situated. Service upon a subtenant may be made in the same manner.

Plaintiff offers evidence that on March 25, 2026, Plaintiff served a 3-Day Notice to Quit on Defendants by posting and U.S. Mail. (UMF No. 11.) Plaintiff met its initial burden to prove Plaintiff provided proper notice.

III.

Whether Defendants Remains in Possession
of the Subject Property

It is undisputed that Defendants failed to vacate the
Subject Property and remain in possession. (UMF No. 18.)

Based on the foregoing, the Court finds that Plaintiff
met its initial burden to establish Defendants' unlawful
detainer of the Subject Property following a foreclosure sale. Defendant fails
to offer any evidence in response.

Conclusion

Plaintiff's Motion for Summary Judgment is GRANTED.

Plaintiff's Request for Judicial Notice is GRANTED. (Evid.
Code § 452(d), (h).)